United States Postal Service
And
American Postal Workers Union, AFL-CIO

Clerk Craft Questions and Answers

Re: POStPlan, Filling Residual Vacancies, and Travel

The Parties have jointly agreed to the following Questions & Answers as further clarification and guidance on issues related to the Clerk Craft and POStPlan offices. Unless otherwise stated in this document, these Q&As are not intended to alter, amend, or change in any way the terms of the 2015-2018 Agreement, the September 22, 2014, MOU Re: *POStPlan: Staffing of Offices, Filling of Assignments, PSE Usage and Conversions,* or the December 31, 2014, MOU Re: *Addendum to Memorandum of Understanding of September 22, 2014, Re: POStPlan.*

POStPlan

1. Is the Postal Service required to separate Clerk Craft Postal Support Employees (PSEs) and reduce Clerk Craft Part-Time Flexible (PTF) hours to the extent possible within an installation (bid cluster) in order to provide work and minimize the impact for full-time Clerk Craft career employees prior to excessing them outside their craft or installation?

   Answer: Yes.

2. Is the Postal Service required to separate Clerk Craft PSEs, including, but not limited to PSEs in any Level 4 RMPOs within an installation in order to utilize those work hours to minimize the impact for Clerk Craft PTF career employees prior to excessing them outside their craft or installation?

   Answer: Yes.

3. Does Item IX of the September 22, 2014, MOU apply to relief work needed in Level 6 RMPOs that are staffed by part-time career postmasters pursuant to Item III?

   Answer: Yes. Bargaining unit employees per Item IX will perform relief work.

4. Can a postmaster or supervisor assigned to an APO perform bargaining unit work in a Level 6 or Level 4 RMPO?

Answer: No, except if there is an emergency situation per Article 1.6 as defined in the July 2012 JCIM (page 24), "It is understood that an emergency is defined as an unforeseen circumstance or a combination of circumstances which calls for immediate action in a situation which is not expected to be of a recurring nature."

5. Does Question and Answer #17 of the POStPlan Q&As dated October 30, 2014, prevent part-time career postmasters identified in Item III of the September 22, 2014, MOU Re: *POStPlan: Staffing of Offices, Filling of Assignments, PSE Usage and Conversions,* from working more than 15 hours of bargaining unit work?

   Answer: Question and Answer #17 was not intended to limit part-time career postmasters to 15 hours of bargaining unit work. Therefore, Question and Answer #17 of the POStPlan Q&As dated October 30, 2014, is eliminated effective with the date of these Questions & Answers.

6. Who is considered an incumbent postmaster eligible to remain in a Level 6 RMPO and convert to the Clerk Craft per Item III of the POStPlan Staffing MOU?

   Answer: Any postmaster appointed to a Level 6 RMPO on or before September 5, 2014, the date of the arbitration award on POStPlan.

7. Will a part-time career postmaster who converts to the Clerk Craft per Item III of the September 9, 2014 Memorandum of Understanding (MOU) Re: *POStPlan: Staffing of Offices, Filling of Assignments, PSE Usage and Conversions* be allowed to stay in the same office and if so, what will be his/her Clerk Craft installation seniority date?

   Answer: The part-time career postmaster who converts to the Clerk Craft per Item III will remain in the same office as a full-time career bargaining unit employee. The Postal Service may assign the subject employee to a Traditional or Non-Traditional Full-Time duty assignment consistent with the National Agreement. The employee's Clerk Craft installation seniority date will be October 1, 2016, which is the first full pay period after September 22, 2016. The effective date will be reflected on his/her PS Form 50.

8. If a part-time career postmaster decides to convert to the Clerk Craft, will he/she be able to bid and occupy a duty assignment in another facility within the installation?

   Answer: Yes. However, if a part-time career postmaster elects to become full-time in the Clerk Craft in his/her level 6 office, he/she will not be allowed to bid on any full-time bid postings in the installation until such time that any PTF who is senior to the former part-time career postmaster in the same craft and installation has been offered the opportunity for conversion to full-time status.

9. What is meant by "pool and relief areas" in Item IX of the *POStPlan: Staffing of Offices, Filling of Assignments, PSE Usage and Conversions* MOU?

Answer: This is defined in Q&A #23 of the *Questions and Answers - Part-Time Flexible Clerks Working in Other Installations dated September 24, 2003*, which states, "Normally, such employees will not be required to travel more than 50 miles from their duty station. This 50 mile criterion is measured as the shortest actual driving distance between installations."

10. If the provisions of Item IX of the *POStPlan: Staffing of Offices, Filling of Assignments, PSE Usage and Conversions* MOU are exhausted and there is a need for assistance in a Level 20 APO installation, what is the pecking order for assistance?

Answer: Employees within 50 driving miles of the office in need of assistance may be utilized once all career Clerk Craft employees within the installation have been exhausted at the straight time rate. The pecking order for assistance shall be:

a. PTFs who have indicated a preference to work outside their installation,

b. Available and qualified Postal Support Employees within the District, excluding Level 4 RMPO PSEs and consistent with the career window percentage for the level 20 or above APO office.

c. PTFs, by juniority, who have indicated a preference to not work outside their installation, may be utilized at the straight time rate.

11. Did the POStPlan Staffing MOU, or the December 31, 2014 Addendum change the provisions of Article 7, Section 3 and/or the exception language in item 13 of the Q&As dated October 20, 2011 regarding PTFs working in Level 21 and above offices?

Answer: No.

Filling Residual Vacancies

12. May PSEs decline an opportunity for conversion outside the installation, but within 50 miles?

Answer: Yes.

13. If a PSE fails to pass the window test for a conversion opportunity, how long must the employee wait before she/he can take the test again?

Answer: 180 days. However, there may be situations where the parties at the national level mutually agree to waive that time frame.

14. When converted to career, does a PSE have to serve a probationary period?

Answer: Clerk Craft PSEs who have already served one full term as a PSE will not be required to serve a probationary period as required by Article 12, Section 1, after conversion to career.

Travel

15. Do Clerk Craft employees receive payment for travel time and/or mileage when required to travel to other offices?

Answer: It depends on the circumstances. Whether a bargaining unit employee who is required to work outside his/her home office is entitled to compensable travel time or mileage is determined by applying the applicable provisions of Section 438 of the Employee and Labor Relations Manual (ELM) and Chapter 7 of Handbook F-15. In accordance with the March 3, 2013 Step 4 settlement agreement, in case #Q00C-4Q-C 04184581, employees who volunteer to work, on a temporary basis, in an office other than their home office in order to supplement their hours, are to follow the provisions of the ELM, Section 438, and Handbook F-15, Travel and Relocation, Chapter 7.d. *Determining Daily Expenses.*

16. For the purposes of compensable travel time and/or mileage, does it matter whether travel is within an installation?

Answer: No.

17. Can the Postal Service require that a bargaining unit employee use his/her personal vehicle for compensable travel time?

Answer: No. The use of a personal vehicle is the decision of the employee, in accordance with the 2012 JCIM, Article 36.2 (page 197-198).

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